
LE PIGEON DE PAPIER

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SOUTH AFRICAN APARTHEID

Not just a thing of the
past!

As humans, we are imperfect. One of our greatest imperfections is an infatuation with the present. “Oh, we’ve done *horrible* things in the past, but that’s the *past*. We’re all sensible people now!” - Not so fast. Apart from all the new horrors being wrought into existence today, past battles often leave a very, very long tail.



That cannot be more true than it is for the South African Apartheid. In this special edition of *Le Pigeon de Papier*, we explore the ins and outs, the ups and downs, the lefts and far rights of South Africa’s legalized systemic discrimination doctrine. We look at the past, to inform our present.

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Introduction: What *is* Apartheid?

Apartheid is never a random, disconnected burst of societal prejudice. It is a highly organized, legally codified system where a government leverages total state power to detach a specific group of people from their ancestral land, their civil rights, and their self-determination.

Before empires ever built physically segregated cities, they constructed the legal and theological frameworks required to justify them. The ideological scaffolding of modern colonialism rests heavily on two foundational European concepts that weaponized early international law to legitimize structural theft.

The Doctrine of Discovery: Originating from 15th-century Papal Bulls including papal decrees issued by the Pope like Dum Diversas (1452) and Inter Caetera (1493) this legal doctrine declared that any land discovered by Christian explorers that was not currently ruled by Christians could be claimed by the crown. Indigenous peoples were granted mere occupancy rights, while ownership immediately transferred to the European discoverers. It explicitly linked religious identity to legal rights. In doing so, it effectively dehumanized non-Christian populations across the globe.

Terra Nullius: A Latin term meaning "nobody's land," terra nullius was used in international law to argue that if a territory lacked European style agriculture, permanent fenced towns, or a written legal system, it was legally empty. The human beings living there were treated as part of the local flora and fauna, lacking actual ownership of the soil. It didn't matter if communities had lived on the land for ten thousand years. If they didn't exploit the soil for capital, the land was considered open for the taking.

Perpetuating the Colonizer's Mindset: These dual concepts created a foundational belief system that totally absolved colonizers of moral guilt. By redefining military invasion as discovery and structural theft as cultivation, colonizers viewed themselves not as criminals, but as agents of divine law...

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...progress, and civilization. This built a powerful intellectual echo chamber. Because the colonizer truly believed they were bringing order to chaos, any violence used to displace Indigenous peoples was easily dismissed as necessary progress.

It allowed colonizing societies to view Indigenous resistance not as a justified defense of a homeland, but as a lawless rebellion against the natural, civilized order. It locked a stubborn cultural assumption into place: the idea that Western legal and economic systems are inherently superior, making ongoing resource extraction and displacement feel logical rather than exploitative.

What is Apartheid?: Apartheid is an Afrikaans word meaning "apartness." Internationally, it is far more than a historical term for South Africa; it is a strictly defined crime under international law. According to the 1973 UN Apartheid Convention and the 1998 Rome Statute, it is an institutionalized regime of systematic oppression and domination by one racial group over any other racial group, committed with the specific intention of maintaining that regime.

In a functioning apartheid system, society is strictly divided into two primary tiers, where human rights, freedom, and human dignity are legally rationed based on identity:

The Dominant Minority Group: Holds a complete monopoly over state apparatuses, the military, and the police despite being a numerical minority. Culturally and legally, they enjoy full civil liberties, protection under civil law, and unrestricted economic rights alongside a high standard of living.

The Oppressed Majority Group: Comprises the vast bulk of the actual population but is stripped of basic rights. They are legally classified as...

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Introduction: What is Apartheid? (Cont. 2)

...sub-citizens or residents of manufactured, isolated "homelands." Daily life for this group means facing strict curfews, constant surveillance, arbitrary detention, and forced labor.

Hallmarks of an Apartheid State: An apartheid system functions by weaponizing every single public institution to maintain inequality. If you look at the anatomy of an apartheid state, the discrimination is built directly into the physical infrastructure and social fabric.

The state uses "pass laws" or internal passports to restrict where the oppressed group can walk, work, or live. They are completely disenfranchised. They have no vote, no say in the laws created, and no voice in the central government ruling over their lives.

Spatial and Geographic Segregation: The population is forcibly separated into distinct enclaves. The dominant group claims the fertile lands, resource-rich zones, and wealthy urban centers, while the oppressed group is confined to overcrowded, peripheral areas like South Africa's Bantustans or townships.

Institutional Services: Every institution is segregated and unequal. Schools for the oppressed group are deliberately underfunded and designed with a restricted curriculum to train them solely for manual labor. Medical care is under-resourced and vastly inferior, leading to massive infant mortality and life expectancy.

The Infrastructure Test: A stark indicator of apartheid is resource distribution, seen most clearly in access to clean drinking water. The state routinely diverts modern plumbing, water filtration, and electrical grids to minority settlements, leaving the majority to rely on contaminated wells, water trucks, or raw, untreated sources. While the minority enjoys swimming pools...

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...and manicured lawns, the majority face a daily crisis just to find safe water to drink.

Ultimately, the primary objective of an apartheid state is maximum resource extraction with zero political liability. The dominant minority wants the cheap labor and the natural resources of the majority, but they do not want to grant them the democratic rights that would threaten minority rule. Apartheid solves this dilemma by keeping the majority vulnerable, legally subordinate, and physically isolated, ensuring the minority reaps all the wealth of the land while bypassing the responsibilities of democratic equality.

Case Studies: How Do They Rate?: Analyzing different countries through this lens requires distinguishing between historical legacies, ongoing structural inequalities, and explicit legal frameworks.

South Africa - Post-Apartheid State: South Africa is the textbook example of an Apartheid state. From 1948 to 1994, it operated a formal, explicit system of constitutional apartheid. The Population Registration Act categorized every citizen by race, and the state ruthlessly enforced separation through military power.

Following the 1994 democratic election of Nelson Mandela, the legal structure of apartheid was fully dismantled. Today, it is a post-apartheid state. However, while the discriminatory laws are gone, the economic legacy remains incredibly stubborn. Wealth, land ownership, and geographic segregation still track closely along the old racial lines, proving that dismantling a legal framework does not instantly cure decades of deep systemic inequality.

Canada - Non-Apartheid with a Colonial Legacy: Canada is structurally a western liberal democracy, meaning it does not have an active, explicit...

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...apartheid legal system today. However, its history is deeply tied to the same colonial mechanisms. The Indian Act of 1876 historically controlled every aspect of Indigenous life, created the reserve system, and laid the groundwork for the Residential School system a targeted policy of forced cultural assimilation.

In fact, historical records show that South African officials actively studied Canada's pass laws and pass system under the Indian Act when designing their own apartheid framework. Today, Canada is considered a non-apartheid state that actively pursues a path of reconciliation to address these historic wrongs. Yet, structural crises persist such as dozens of Indigenous reserves continuing to live under long-term boil water advisories for decades highlighting the massive gap between legal equality and systemic equity.

Goals of an Apartheid State: An apartheid state is, at its root, an economic machine. The goal is to ensure that the dominant minority group owns profits from the most valuable assets in the country while forcing the oppressed majority into serving as a permanent pool of cheap, disposable labor. The state legally blocks the majority of groups from owning commercial agricultural land, factories, or mineral rights. All the machinery of wealth creation is reserved for the minority. The ruling minority faces a paradox: they don't want the oppressed group living near them, but they need their muscles to run the economy [work the mines, build the roads, clean the homes]. Apartheid solves this by using "pass laws" and work permits. The majority group is allowed into the economic engines of the country only when their labor is actively required, and they are expelled now.

Israel - The Current Global Debate: Major international bodies [including Amnesty International, Human Rights Watch, and the UN Special Rapporteur], alongside Israeli human rights groups like B'Tselem, argue that Israel's...

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...administration of the occupied Palestinian territories [the West Bank and Gaza], combined with discriminatory domestic land and citizenship laws inside Israel proper, meets the legal international definition of apartheid [Dugard & Reynolds, 2013]. They point to separate road systems, the expansion of Israeli settlements, the military checkpoint system, and the severe fragmentation of Palestinian land as evidence of an institutionalized system of demographic domination.

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How did Apartheid *Begin*?

South Africa's history with racial segregation predates legal apartheid by over a century. Laws were introduced to enforce master/servant/slave relationships, block black people from land ownership, reserve higher paying and more “civilised” jobs for white people, among other things. In 1950, the Population Registration Act formally introduced classifying people by race.

The state assigned everyone a racial category before using other laws to dictate their freedoms, public services, and livelihoods.

In 1952, pass books were introduced to tighten control on black men and their freedom of movement.

Further laws were passed through 1970 to control black land ownership and where people who weren't white could live, along with stripping black people of South African citizenship.

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Pass Books

Introduced by The Natives (Abolition of Passes and Co-ordination of Documents) Act of 1952, pass books (or reference books), were passport-like booklets black men aged 16 and older were forced to carry. They contained personal identity information, along with employment records and a list of locations the holder could travel to and work in.

Police were able to demand them to be shown at any time, creating an effective way to oppress black people's freedom of movement.

Land Expropriation and Forced Displacement

Land control was a hugely important part of apartheid. Through a series of laws spanning nearly a century, black people were prohibited from owning, leasing, living on, or farming on the vast majority of land in South Africa.

Laws introduced from 1951-1970 brought about "Bantustans" or homelands. Black people were stripped of their citizenship before being forcibly deported to these reserves and forced to live there.

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What the Gov Said

The South African government carried out their oppression while telling their population they were upholding “Christian standards” or preventing “national suicide” by keeping the power in the hands of white people. They based their message on the common fear among white people that equality would ruin their own freedoms, culture, and job opportunities. The response was wide support of oppression from white people to maintain control and “security.”

What the Gov Said to the World

The rest of the world was told a much different story. The separation of different races was presented as steps toward pluralism, self-governance, and peaceful coexistence. The South African government was not as open with its forced deportations; pass laws; workplace, public, and private segregation; and land expropriations.

The sad reality remained, however, that most people in power didn’t really care, because they were focused on greed and power. Most of them also carried out similar or identical policies.

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How did South Africa move beyond apartheid?

Following the end of apartheid, Nelson Mandela authorised the Truth and Reconciliation Commission (TRC). This was a court-like restorative justice body that invited victims of human rights violations to speak about their trauma and experiences, and some were selected for public hearings. Perpetrators of violence were also able to give testimony and request amnesty from civil and criminal prosecution provided that their crimes were politically motivated and proportionate.

Another way the government planned to move forward was with the Broad-Based Black Economic Empowerment (B-BBEE) policy. This policy was designed to remedy inequalities that remained from Apartheid, by increasing the amount of black citizens involved in business ownership, management, and the supply chain.

Beyond Apartheid as a Timeline

May 1948- The national party, led by DF Malan, wins election and begins to implement apartheid, severely restricting the freedom of Black Africans.

June 1952- The African national congress and other anti-apartheid groups launch the Defiance Campaign against Unjust laws. The protests from this were largely non-violent. Black volunteers would burn their pass-books, and go into places that were considered “whites only”. These volunteers were quickly arrested, with the most arrests happening in October of 1952 at 2000 people.

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Beyond Apartheid as a Timeline (Cont.)

March 1960- Police in a black township opened fire on a group of people who were peacefully protesting oppressive laws. The atmosphere of this protest was cheerful, the participants were non-violent, yet the police began shooting at them, killing 69 people and wounding 180 others. This is known as the sharpville massacre, as the protesters marched to the sharpville police station

June 1964- Nelson Mandela and ANC members were sentenced to life in prison. Mandela was convicted of sabotage, conspiracy to overthrow the state, and treason because of his involvement in the formation of MK, the militant wing of the ANC.

June 1976- More than 600 students were killed in Soweto and Sharpeville, known as the Soweto Massacre. These students were from various schools, and they had all come together to protest the introduction of Afrikaans as the language of instruction in black schools. Many black people in South Africa considered Afrikaans to be the “language of the oppressor”

February 1990- President F.W de Klerk announced that the African National Congress ban would be lifted, and that Nelson Mandela would be freed from prison

1991- Nelson Mandela was elected president of the ANC

1994- Nelson Mandela is inaugurated as President of South Africa after winning the first multiracial South African election. The ANC won 63% of the popular vote

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The Restriction of Mixed Marriages

In 1949, the Prohibition of Mixed Marriages Act prohibited people of different racial backgrounds from being in a relationship or marriage. The mixed marriage law was enacted to keep the lines of race very clear because, when you have mixed children or mixed people, where they fall into the category of race, which was very strict in South Africa at the time, can become unclear. This could allow people to have more of an interracial community, which could backfire on the government.

If anyone was caught breaking this law, there was a fine not exceeding 50 pounds for the officiant or the people in the marriage. Anyone who knowingly lied about a mixed marriage as a witness could be found guilty of perjury.



In 1972 alone, over 300 people were found guilty of participating in a mixed marriage, officiating a mixed marriage, or knowing about a mixed marriage. The number of people found guilty of this crime dropped in 1980. In 1982, the Prime Minister of South Africa gave his blessing for a white man and an Indian woman to live their lives as a married couple, if they lived in a small Indian township in Pietersburg.



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The Importance of Institution

Apartheid survived from 1948 to 1994 because it was supported by nearly every major institution in South Africa. The government created racial classifications that divided people into groups such as White, Black (Bantu), Coloured, and Asian. These classifications determined where people could live, what education they could receive, what jobs they could hold, and what rights they had. Courts enforced these laws, police protected them, schools integrated them into everyday life, and businesses profited from them. Because each institution reinforced the others, apartheid became far more difficult to dismantle than a single government policy.

Education

This is also why change took so long. Apartheid was not just enforced through laws. It was built into everyday life. Education is one of the clearest examples. Through the Bantu Education Act of 1953, Black students received fewer resources and opportunities, ensuring that inequality would continue into future generations. Apartheid was not only controlling the present; it was shaping the future.



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The Benifits Of Buissness

Many people and institutions also benefited from the system. Businesses gained access to cheap Black labour, white South Africans maintained political and economic advantages, and the government used the police and legal system to suppress opposition. As long as these institutions continued to benefit, there was little incentive for change. However, by the 1980s, sanctions, strikes, and economic decline were beginning to hurt business. As apartheid became less profitable and more unstable, many business leaders stopped supporting the system and instead pushed for reform and negotiations.



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Resistance

Resistance existed throughout apartheid. Students, workers, activists, religious leaders, and anti-apartheid organizations challenged the system for decades. The African National Congress (ANC), led by figures such as Nelson Mandela, became one of the most important forces opposing apartheid. Leaders such as Desmond Tutu used churches (although not all opposed the apartheid at first) to challenge apartheid both within South Africa and internationally. Events such as the Soweto Uprising in 1976 showed that opposition was growing rather than disappearing, while labour strikes exposed the economic weaknesses of the system.

International pressure also played an important role, although for many years it was limited by the Cold War. South Africa was viewed by countries such as the United States and Britain as an important anti-communist ally, meaning political and economic interests often outweighed concerns about human rights. While many governments criticized apartheid, they were reluctant to take strong action against a country they saw as strategically valuable. This allowed apartheid to survive for decades despite growing international criticism.



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War Is Over

As the Cold War ended in the late 1980s, that support weakened. Countries became more willing to challenge the apartheid government, while the United Nations increased pressure through sanctions and condemnations. South Africa became increasingly isolated politically, economically, and culturally. Combined with growing resistance from within the country, this pressure made apartheid increasingly difficult to maintain. And so this led the businesses to make their decision to change as well. Voices that were constantly calling for an end before, got even louder as new ones joined, admittedly with selfish intentions, however it still helped.

However, the end of apartheid, the election, was only the beginning. Institutions that had once supported oppression had to be transformed. Apartheid laws were repealed, segregated education systems were abolished, and the police and military were restructured under the new democratic government. In 1996, South Africa adopted a new constitution that guaranteed equal rights regardless of race and established legal protections against discrimination. Institutions that had once been designed to enforce segregation were now expected to protect equality instead.



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Why Do
Things
Never
Change?
Selfishness?



The institutions of South Africa changed because decades of internal resistance were reinforced by growing international pressure. Change took so long because apartheid was embedded in nearly every part of society. Governments, schools, churches, businesses, courts, and foreign allies all helped sustain the system. Politics, greed, fear, and hatred are the simplest ways of explaining why things take so long to get better. Ending things like the apartheid therefore requires more than changing a government, because it is the furthest form of racial segregation other than straight up slavery and genocide. Change require not just changing the institutions but also people's mindsets, and that's why patterns in history keeps repeating itself.

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The End of Apartheid?

Apartheid in South Africa ended through a combination of sustained internal resistance, international pressure, and economic strain. For decades, protests, strikes, and civil disobedience led by Black South Africans and supported by allies steadily weakened the system of racial segregation. The African National Congress played a central role in organizing opposition both inside the country and abroad.



At the same time, global sanctions, trade restrictions, and widespread boycotts increasingly isolated the South African government. This international pressure damaged the economy and made maintaining apartheid more difficult and costly. By the late 1980s, the system was under severe political and financial stress, creating conditions where continued minority rule was no longer sustainable.

In response, President Frederik Willem de Klerk began dismantling apartheid in 1990 by unbanning opposition parties and releasing political prisoners, including Nelson Mandela. Negotiations followed to create a new democratic constitution, and in 1994 South Africa held its first multiracial election, marking the official end of apartheid and the beginning of majority rule.

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Long-term Consequences

Even after apartheid officially ended in 1994, its effects continue to shape South African society. One of the most significant impacts is economic inequality. Wealth, land ownership, and business opportunities remain largely concentrated in the hands of the white minority, while many Black South Africans still experience high levels of poverty. As a result, South Africa continues to have one of the highest income gaps in the world.

Spatial segregation also remains visible today. The apartheid-era “homelands,” created to isolate non-white populations and supply cheap labor to urban centers, are still largely underdeveloped and far from major cities. Many Black communities continue to live in these areas, limiting access to resources, infrastructure, and economic opportunity.

These inequalities also affect education and employment. Schools in historically marginalized areas often lack funding and resources, leading to lower educational outcomes and fewer job opportunities. This contributes to higher unemployment rates and a concentration of low-wage labor among Black workers. Combined with ongoing social inequality and economic exclusion, these conditions have also contributed to persistent social tensions and higher crime rates in many disadvantaged communities.

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The Monster With a Long Tail

As humans, we have a tendency to simplify the past. It's our brain's way of trying to remember what's important most efficiently as possible. However, it does mean that injustices like apartheid often get reduced to being a "historical event", something locked away in the past. Whitewashing stems from the same issue: It's simpler to imagine the story as something like, "Apartheid was solved the minute Nelson Mandela was freed from prison, at which point he killed the last racist." We forget that the past was just as complex as the present, and that, for instance, apartheid in South Africa is not erased completely. No, it has in fact a very long tail. A 2022 article from World Bank Group, called *Inequality in Southern Africa: An Assessment of the Southern African Customs Union (English)*, found that 10% of the population of South Africa held over 80% of the country's wealth. Furthermore, the black population was predominantly in the poorest category.



The United Nations Human Rights Office of the High Commissioner made an article, 30 years on, South Africa still dismantling racism and apartheid's legacy, which discusses the continuing effects of apartheid in the country. The article quoted Tessa Dooms as saying, *"The evil genius of Apartheid was the segregation project, as it allowed the Government to not only separate people based on arbitrary categorizations, but through..."*

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The Monster With a Long Tail (Cont.)

...this create material differences between the communities to reinforce the idea of actual racial differences". The big problem is that the nature of apartheid turned segregation – a forced divide – into a long-term economic division, so that even after apartheid legislature is dismantled, it is easy for racial discrimination to continue. This is generation inequality, and it is material, not just legal or social. The United Nations article also touched on how South Africa's economic and climate instability make progress difficult to maintain.

Equal opportunity legislature is one way in which we are still trying to make progress, but efforts such as this can be weaponized by those with malicious intent. Anecdotally, we can look at Rethabile Ratsomo. She is often viewed by her colleagues as a B-BBEE hire (Broad-Based Black Economic Empowerment program), which someone with racist intent can use as an excuse, saying things like "She's not here because of her competence." In this way, we see how progress towards equality and equity can be turned on its head by those who still want to perpetuate apartheid.

Professor Tshepo Madlingozi, Commissioner at the South African Human Rights Commission (SAHRC), said, *"History has shown that unless you have decolonized your mind, you are going to step into the shoes of the oppressor and oppress other people over and over again,"* and we can see this happening today. It is not an easy truth, but it's something we must recognize if we want to be able to honestly say that we're making anything that remotely resembles progress.

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